

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3123

By: Humphrey

AS INTRODUCED

An Act relating to news media outlets; defining terms; establishing cause of action for intentional distribution of false news; providing exception for satire or parody; requiring the Attorney General to file action on behalf of the citizens of Oklahoma; authorizing award of certain damages; authorizing award of certain fees and costs; construing provisions; making remedies cumulative; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1450.1 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "News media outlet" means any national media, local media, social media, or information platform company or any company with a controlling interest in a national media, local media, social media, or information platform; and

1 2. "Social media" means forms of electronic communication
2 through which users create online communities to share information,
3 ideas, personal messages, and other content.

4 B. Any news media outlet that knowingly, intentionally,
5 willfully, and maliciously reports false news, information, or
6 propaganda meant to misinform, mislead, promote, or publicize a
7 particular political point of view shall be liable for intentional
8 distribution of false news and liable for actual and punitive
9 damages; provided, however, there shall be no liability for reports
10 of false news, information, or propaganda shared for the sole
11 purpose of satire or parody.

12 C. The Attorney General shall file a civil action against the
13 news media outlet on behalf of the citizens of Oklahoma.

14 D. Actual damages shall include, but not be limited to, any
15 profits from the intentional distribution of false news. Punitive
16 damages of no less than Five Hundred Dollars (\$500.00) per report to
17 intentionally distribute false news may be awarded. The prevailing
18 party in any action under this section shall be entitled to attorney
19 fees and costs.

20 E. This section shall not apply to law enforcement agencies or
21 their employees acting within the scope of their employment
22 investigating Internet crimes. Nothing in this section shall be
23 construed to impose liability on an interactive computer service, as
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1 defined in 47 U.S.C., Section 230(f), for content provided by
2 another person.

3 F. The remedies provided for in this section are cumulative and
4 shall be in addition to any others provided for by law.

5 SECTION 2. This act shall become effective November 1, 2026.

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